

HEADNOTE

“1. The presence of an obvious error leads, in accordance with Art. 74 para. 1 UPCA in conjunction with R. 223 RoP, to the ordering of suspensory effect of the appeal. The suspensory effect does not necessarily have to be ordered for the entire first instance decision or order being challenged. The suspensory effect may be limited to the part of the first instance decision or order that is affected by the obvious error or that is based on the obvious error. A prerequisite for this is that it is a severable part.

2. A severable part of a court decision exists when the part can be assessed or challenged separately from the other parts of the decision without impairing its meaning or the meaning of the other parts.

3. A waiver of enforcement is effective if it clearly indicates on what basis and to what extent enforcement is no longer to take place (specificity) and if it is moreover unambiguous, irrevocable and unconditional.

4. An effective waiver of enforcement may eliminate the need for legal protection for an application pursuant to R. 223 RoP.”

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Application for provisional
measures

PATENT
EP 4 242 056

CHILD SEAT SYSTEM, COMPRISING
A SEAT ELEMENT AND A BASIS
MOUNTABLE ON A MOTOR VEHICLE

KEYWORDS

Suspensive effect of an appeal

manifest error

scope

waiver of enforcement

need for legal protection

Article 74 Effects of an appeal**SUMMARY**

The Court of Appeal in Luxembourg issued a ruling on an application for provisional measures. The patent at issue relates to a child seat system comprising a seat element and a basis mountable on a motor vehicle. According to the headnotes of the decision, when an obvious error is identified in a first instance decision, the appellate court may order suspensory effect under the UPC Agreement, though this suspension can be limited to only the portion of the decision affected by that error if that part is severable from the rest. A severable part exists when it can be independently assessed or challenged without affecting the meaning or validity of the remaining parts of the decision. An effective waiver of enforcement requires the party to clearly and specifically state the basis and scope of what will no longer be enforced, and such waiver must be unambiguous, irrevocable and unconditional. Where an effective waiver of enforcement has been granted, it may eliminate the necessity for the legal protection sought through an application for provisional measures.